

日米租税条約 第22条（特典の制限）第1項【柱書】

Japan - USA Convention (2003) Art. 22(1) / 正文

ARTICLE 22

1. Except as otherwise provided in this Article, a resident of a Contracting State that derives income from the other Contracting State shall be entitled to all the benefits accorded to residents of a Contracting State for a taxable year by the provisions of other Articles of this Convention only if such resident satisfies any other specified conditions for the obtaining of such benefits and is either:

(a) an individual;

(b) a Contracting State, any political subdivision or local authority thereof, the Bank of Japan or the Federal Reserve Banks;

(c) a company, if:

(i) the principal class of its shares, and any disproportionate class of its

shares, is listed or registered on a recognized stock exchange specified in clause

(i) or (ii) of subparagraph (b) of paragraph 5 and is regularly traded on one or more recognized stock exchanges; or

(ii) at least 50 percent of each class of shares in the company is owned

directly or indirectly by five or fewer residents entitled to benefits under clause

(i), provided that, in the case of indirect ownership, each intermediate owner is a person entitled to the benefits of this Convention under this paragraph;

(d) a person described in subparagraph (c) of paragraph 1 of Article 4;

31

(e) a pension fund, provided that as of the end of the prior taxable year more than

50 percent of its beneficiaries, members or participants are individuals who are residents of either Contracting State; or

(f) a person other than an individual, if:

(i) residents that are described in subparagraph (a), (b), (d) or (e), or clause (i) of subparagraph (c), own, directly or indirectly, at least 50 percent of each class of shares or other beneficial interests in the person, and

(ii) less than 50 percent of the person's gross income for the taxable year is paid or accrued by the person in that taxable year, directly or indirectly, to persons who are not residents of either Contracting State in the form of payments that are deductible in computing its taxable income in the Contracting State of which it is a resident (but not including arm's length payments in the ordinary course of business for services or tangible property and payments in respect of financial obligations to a commercial bank, provided that where such a bank is not a resident of a Contracting State such payment is attributable to a permanent establishment of that bank situated in one of the Contracting States).